Human Rights Watch (September 4, 2025)
Q&A: Reparations for Historical and Ongoing Colonial Atrocities

The term **"reparations"** refers to the right under international human rights law to a remedy for those who have been harmed. The term **"reparatory justice"** is intrinsically linked with the ***right to reparations*** and refers to a broader, more comprehensive approach that addresses the root causes of harm and systemic inequalities to seek broader social and political change.

There is no single model to reparations or reparatory justice processes, but they should fulfill, at the very least, the following criteria to align with international human rights standards:

- Be survivor- and victim-centered as well as community-driven;
- Aim to recognize past wrongs that have led to ongoing injustices and rights abuses; and
- Seek accountability and redress for these wrongs...

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2. Why should there be reparations for historical and ongoing colonial atrocities?

There is ample evidence linking the legacies of colonialism, enslavement and the slave trade with contemporary forms of systemic racism...

UN Deputy High Commissioner for Human Rights Nada Al-Nashif said in 2022 that "[w]hile many former colonies have gained independence since the establishment of the United Nations, the process of **decolonization** remains incomplete." She also noted that "[n]o State has comprehensively accounted for the **past or the ongoing consequences of systemic racism**, including the socioeconomic and political marginalization that shapes the lives of people."

Exploitation during colonialism resulted in the forced displacement of people from their homelands, the destruction of ecosystems and cultural structures, and the extraction of raw materials and natural resources from colonies, while enriching colonizing states, institutions, and companies. The negative impacts of these practices continue to affect people and affected states in the present...

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4. What forms of reparation are available?

...The UN Guidelines highlight five forms of reparation:

- **Restitution** involves restoring victims to the position they would have been in had the harm not occurred. This can include restoration of arbitrarily deprived legal rights; restoration of liberty; return to one's place of residence; and return of stolen land and property, including cultural heritage and the ancestral remains of Indigenous peoples.

- **Compensation** refers to the provision of financial payment or other material assistance in addition to any economically assessable damage, especially where full restitution is not materially possible or not proportionate to the harm suffered. The damage can be immaterial due to, for instance, physical or mental suffering, and harm to reputation or dignity.

- **Rehabilitation** includes measures to restore victims' well-being, such as psychological support, to promote social integration of victims, and to provide legal assistance to individuals or communities to recover from the harm they have endured.

- **Satisfaction** is a non-financial form of reparation for moral damage or damage to dignity or reputation. It focuses on measures to acknowledge the harm done, including through judicial decisions; official apologies and public acknowledgment and acceptance of responsibility; truth and reconciliation processes; and public commemoration and memorialization of the injustice...

- **Guarantees of non-repetition** are measures aimed at preventing future violations, such as institutional reforms; changes in laws or policies; and promoting accountability to ensure that the harm is not repeated...

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6. Is an official apology sufficient to redress past and present historical harms?

An official apology can be a vehicle to acknowledging past and present harms. An official apology, by itself, however, will almost invariably fail to comprehensively redress past and present harms. A few examples illustrate this:

...In 2021, the German government formally apologized for what it recognized as the colonial-era genocide in Namibia. The apology, however, was framed as part of a "historical and moral responsibility," not a legal responsibility. **Germany maintains that the affected Nama and Ovaherero peoples or any other communities affected by colonial atrocities do not have a right to reparations**...

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9. What are key barriers to advancing reparations for colonial atrocities?

...Political and public arguments against reparations in the UK include that **reparations should not come at a cost to taxpayers today**, which ignores the ongoing benefits derived from enslavement and colonization. UK Prime Minister Keir Starmer also claimed that his government "can't change history"...

Some governments have also dismissed claims for reparations based on an interpretation of the doctrine of intertemporal law. They argue, **the legality of an act should be assessed based on the laws in effect at the time the act occurred, not the laws in effect at a later date**. Relying on this legal principle, current governments have dismissed any legal responsibility for colonial atrocities, claiming that these had not been recognized as international crimes when committed, or that domestic or international law treated these atrocities as lawful at the time. This argument has been challenged by many human rights experts because historical laws that governments rely on to deny responsibility today for past crimes were often racist and discriminatory.

...On August 14, 2025, in response to a parliamentary question, the German government claimed that, as German colonial atrocities, at the time, did not violate international law, the concept of reparation was "not applicable in the context of Germany's colonial past." This starkly differs to its position paving the way for reparations for Nazi-era atrocities....